

Form No:HCJD/C-121
ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. W. P. No.24605 of 2014

Mohsin Abbas **Versus** RPO etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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11). 06.05.2015 Syed Qaiser Gillani, Advocate for the petitioner.
Ch. Iftikhar Iqbal Ahmad, Assistant Advocate General along
with Muhammad Yousaf, SI with record.
Mr. Tasawar Hussain Chadhar, Advocate for respondent
No.4.

The petitioner has come up to this Court through this constitutional petition in terms of Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 with the following prayer: -

“It is, therefore, most respectfully and humbly prayed that this petition may very kindly be accepted and the respondents No.1 and 2 may kindly be directed to change the investigations of the F.I.R. mentioned above and may also be directed to be entrusted to a senior, honest and upright Police Officer to inquire the matters in a transparent and impartial manner or to a panel of Police Officers in range crimes, in the supreme interest of justice.”

From bare reading of the above reproduced prayer made by the petitioner, it is evident that the petitioner seeks direction to respondents No.1 & 2 for change of investigation of case F.I.R. No.230 dated 08.05.2013, offence under Sections 302, 324, 148 and 149 PPC registered at Police Station Kotmomin, District Sargodha.

2. The report requisitioned from respondent No.3 has been submitted and learned counsel for the petitioner has gone through the same.

3. The parties are ready to advance arguments today on the legal points involved in the matter so, this case shall be treated as a 'Pacca Case'.

4. Learned counsel for the petitioner, inter alia, contends that the petitioner is an accused in above said FIR and a cross version by the petitioner side has also been recorded but the investigation officer has not conducted the investigation properly regarding said cross version; that the petitioner moved an application for change of investigation but the same was rejected by respondent No.2; that thereafter, petitioner moved application with the same prayer to respondent No.1 which was also turned down without considering the factual and legal aspects of the matter; that while rejecting both the applications, respondents No.1 & 2 have not taken into consideration the gravity of the issue and partiality shown by the Investigation Officer seized with the investigation; that the petitioner has been deprived of his very right of fair trial provided under the law. Learned counsel finally prays that this petition be accepted by this Court in exercise of its constitutional jurisdiction and to ensure the justice a direction graciously be issued to respondents No.1 & 2 to change the investigation of above said case. In support of his contentions, learned counsel for the petitioner places reliance on the cases of Bahadur Khan v. Muhammad Azam and 2 others (2006 SCMR 373), Commissioner of Income Tax and others v. Messrs Media Network and others (PLD 2006 SC 787), Naseer and others v. Khuda Bakhsh and others (2011 SCMR 1430) and Raja Khurshid Ahmed v. Muhammad Bilal and others (2014 SCMR 474).

5. Learned counsel for respondent No.4 vehemently opposes the contentions raised by learned counsel for the petitioner and, inter alia, submits that challan has been submitted in the court of competent jurisdiction and statements of nine prosecution witnesses have been recorded;

that respondents No.1 & 2 dismissed the applications moved by the petitioner for change of investigation after a thorough probe as per law. Lastly, prays for dismissal of this petition.

6. I have heard the arguments advanced by learned counsel for the parties, learned Assistant Advocate General and scanned the available record with their assistance.

7. The report submitted by respondent No.3 reveals that the cross version put forth by the petitioner was brought on record in pursuance of the orders passed by this Court in connection with Writ Petition No.18295 of 2013 and during the investigation qua the cross version, the present petitioner moved an application on 09.06.2014 to respondent No.3 for first change of investigation of the case whereupon, the matter, as per law, was referred to District Standing Board and after due course adopted by the said Board, it opined adverse to the stance taken by Zafar Iqbal injured and change of investigation was not recommended due to which investigation could not be transferred while application submitted to respondent No.1 for the same reason, was also rejected. Now, the trial is almost at its final stage as the statements of nine prosecution witnesses including the eyewitnesses and the Medical Officer stand recorded.

The cross version extended by the petitioner and his co-accused Zafar Iqbal in rebuttal of the narration available in the crime report against them has already been brought on record. The trend of striving for change of investigation only to score a favourable police finding, inadmissible in evidence, merely to counter the earlier result of investigation is to be deprecated. In absence of any relevant fact or evidence, omitted or neglected by the earlier Investigation Officer, necessitating collection of the same by the Investigation Agency to put before the learned court of competent jurisdiction, change of investigation would be a futile exercise that cannot be approved. The case law relied upon by learned counsel for the

petitioner is distinguishable on facts and circumstances of this case.

For what has been discussed above and having light from the esteemed judgment passed by the Hon'ble Supreme Court of Pakistan in the case of Qari Muhammad Rafique v. Additional Inspector-General of Police (Inv.), Punjab and others (2014 SCMR 1499) wherein, the august Court has held as under: -

“5. ...the challan was submitted in court at least two months prior to the transfer of investigation and at that time charge had also been framed against the accused by the learned trial Court. The trial had also commenced at the time of transfer of investigation, as such, the order for transfer of investigation at that belated stage was not sustainable in view of the law laid down by this Court in the case of Muhammad Nasir Cheema v. Mazhar Javaid and another (PLD 2007 SC 31)...”

this Court is of the view that at this belated stage, the issuance of direction to respondents No.1 & 2 to consider the change of investigation, under the relevant law, is not justified hence, this petition is dismissed being devoid of merits.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING:

Judge

‘Javaid’